Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 499

RESOLUTION RESPECTFULLY URGING THE 19TH CONGRESS OF THE PHILIPPINES TO ENACT A LAW CREATING A PROVINCE TO BE COMPOSED OF THE MUNICIPALITIES OF PAHAMUDDIN, KADAYANGAN, NABALAWAG, OLD KAABAKAN, KAPALAWAN, MALIDEGAO, TUGUNAN, AND LIGAWASAN, TO BE NAMED AS KUTAWATO PROVINCE

WHEREAS, Section 1, Article X of the 1987 Philippine Constitution provides that the political subdivisions of the Republic of the Philippines are provinces, cities, municipalities, and barangays, with autonomous regions established in Muslim Mindanao and the Cordilleras as stipulated;

WHEREAS, Section 25, Article II and Sections 2 and 3, Article X of the 1987 Philippine Constitution establish the State's policy on local autonomy, ensuring the autonomy of local governments;

WHEREAS, Section 2 of Republic Act No. 7160, otherwise known as the *"Local Government Code of 1991"*, states that territorial and political subdivisions of the State shall enjoy genuine and meaningful local autonomy, enabling them to attain their fullest development as self-reliant communities and make them more effective partners in the attainment of national goals;

WHEREAS, the establishment of the Special Geographic Area (SGA) arose from the historic quest of the sixty-three (63) barangays from the municipalities of Carmen, Kabacan, Midsayap, Pigcawayan, Pikit, and Aleosan of the province of Cotabato for their inclusion into the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) through a plebiscite held on February 6, 2019;

WHEREAS, by virtue of the authority granted by Republic Act No. 11054, otherwise known as the *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, to the Bangsamoro Parliament to create, divide, merge, abolish, or substantially alter boundaries of municipalities or barangays in accordance with law, the sixty-three (63) barangays in the SGA were constituted into the eight (8) new municipalities of Pahamuddin, Kadayangan, Nabalawag, Old Kaabakan, Kapalawan, Malidegao, Tugunan, and Ligawasan, pursuant to the Bangsamoro Autonomy Act (BAA) Nos. 41, 42, 43, 44, 45, 46, 47, and 48 on August 17, 2023;

WHEREAS, the registered voters of the aforementioned barangays overwhelmingly ratified the creation of the respective proposed municipalities in the plebiscites conducted by the Commission on Elections on April 13, 2024;

WHEREAS, the Chief Minister of the Bangsamoro Government on July 13, 2024 has appointed the Officers-in-Charge (OICs) for the newly created municipalities of the SGA who will act as Local Chief Executives and Members of the Sangguniang Bayan;

WHEREAS, incidental to their inclusion into the BARMM from the province of Cotabato, the registered voters in the SGA were not able to vote for their Representative to the House of Representatives as well as for their Governor, Vice-Governor, Provincial Board Members, Mayors, Vice-Mayors, Members of the Sanggunians, and other local government elective officials during the 2022 elections;

WHEREAS, the establishment of a province is essential to the existence and operation of the municipalities and barangays in the SGA of the Bangsamoro Autonomous Region;

WHEREAS, to expedite the development of the newly created eight (8) municipalities within the SGA and to provide basic services to its constituents, it is imperative to establish a province that will oversee, supervise, and support the municipalities therein as provided in the BAA No. 49, otherwise known as the *"Bangsamoro Local Governance Code,"* as well as facilitate more efficient service delivery, promote inclusive growth, strengthen peace and order in the areas that have been marred by decades of armed conflict, and prevent the disenfranchisement of the people by ensuring their right to adequate and efficient government services;

WHEREAS, Sections 10 and 11 of its Article X of the 1987 Philippine Constitution grants the Congress of the Philippines the authority to create, divide, merge, abolish, or alter the boundaries of province, cities or municipalities, and barangays, in accordance with the criteria established under Section 461, Chapter I, Title IV, Book III of Republic Act No. 7160 which requires an average annual income of Twenty Million Pesos (Php 20,000,000.00), and either a contiguous territory of at least Two Thousand square kilometers (2,000 km^2) or a population of at least Two Hundred Fifty-Thousand (250,000), and subject to approval by majority of votes cast in a plebiscite by the affected political units;

WHEREAS, upon creation, the eight (8) municipalities in the SGA of BARMM already had a consolidated average annual income of Two Hundred Eighty-Two Million Six Hundred Nine Thousand and Nine Hundred Twenty-Eight Pesos (Php 282,609,928.00), a combined territory of Eight Hundred Fourteen Point Seven Thousand Five Hundred Fifty-Five square kilometers (814.7555 km^2), and a total population of Two Hundred Fifteen Thousand and Four Hundred Thirty-Three (215,433) inhabitants;

WHEREAS, while the SGA may not meet some of the statutory requirements for the creation of a province under Republic Act No. 7160, there is an imperative to recognize the peculiar situation of the municipalities in the SGA as set by the legislative precedents of the Philippine Congress in the creation of the provinces of Biliran and Dinagat Islands;

WHEREAS, Congress, through the Local Government Code, particularly Section 462, Chapter I, Title IV, Book III thereof, has converted the sub-province of Biliran, with a population of One Hundred Eighteen Thousand Twelve (118,012) inhabitants and a total land area of Five Hundred Thirty-Six square kilometers (536 km^2), into a regular province;

WHEREAS, Congress, through Republic Act No. 9355, also known as *"Charter of the Province of Dinagat Islands"*, created the Province of Dinagat Islands despite its relatively small land area of approximately Eight Hundred Two square kilometers (802 km^2) and a population of only One Hundred Six Thousand and Nine Hundred Fifty-One (106,951) inhabitants, a creation uphold by the Supreme Court in Navarro vs. Ermita (G.R. No. 180050, 12 April 2011), which ruled that Congress, recognizing the capacity and viability of Dinagat to become a full-fledged province, enacted Republic Act No. 9355 by utilizing an exemption from the land area requirement found in the LGC-IRR, and through its plenary legislative powers, gave legal effect to this exemption in Article 9 (2) of the LGC-IRR, thus creating the Island Province of Dinagat;

WHEREAS, although the primary considerations for the creation of local government units include economic viability, efficient administration, and capability to deliver basic services to their constituents, the primordial criterion is economic viability, which is present in this case as demonstrated by the SGA's consolidated average annual income of Two Hundred Eighty-Two Million Six Hundred Nine Thousand and Nine Hundred Twenty-Eight Pesos (Php 282,609,928.00) far exceeding the Twenty Million Pesos (Php 20,000,000.00) required under the Local Government Code;

WHEREAS, in light of the above circumstances and the recognition of the plenary powers of the Congress of the Philippines, the fate and future of the Bangsamoro people in the SGA rest in the hands of each legislator in the House of Representatives and the Senate of the Philippines, and the unique circumstances of the SGA, including its historical context and the specific needs of its population warrant special consideration to ensure that the objectives of local autonomy and efficient provincial services are met;

WHEREAS, considering the shared history, culture, and heritage of the communities that will form part of the proposed province, it is recommended that it shall be named as *"Kutawato;"*

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To respectfully urge the 19th Congress of the Philippines to enact a law creating a province to be composed of the municipalities of Pahamuddin, Kadayangan, Nabalawag, Old Kaabakan, Kapalawan, Malidegao, Tugunan, and Ligawasan, to be named as Kutawato Province.

RESOLVED, FURTHER, To forward the foregoing Resolution to the Honorable Speaker of the House of Representatives, the Honorable Senate President of the Philippines, copy-furnished the Office of the President and the Philippine Congress-Bangsamoro Parliament Forum, for their information and appropriate action.

ADOPTED, *Rabi Al-Awwal* 24, 1446/September 27, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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